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Case Number: 24TRCV01454 Hearing Date: August 3, 2026 Dept: M

LOS ANGELES SUPERIOR

COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday,

August 3, 2026

Department M Calendar No.

PROCEEDINGS

Ira Joe Cauthen v. William Yang Stein,

et al.

24TRCV01454

1. Michelle

Stein and Daniel Stein's Motion for Summary Adjudication of Issues

2. Ira

Joe Cauthen's Motion to Compel Defendant Daniel Stein's Further Responses to

Form and Special Interrogatories and Request for Sanctions

3. Ira

Joe Cauthen's Motion to Compel Defendant Daniel Stein's Further Responses to Request

for Production of Documents and Request for Sanctions

TENTATIVE RULING

Michelle

Stein and Daniel Stein's Motion for Summary Adjudication of Issues is granted, in part, and denied, in part.

Ira

Joe Cauthen's Motion to Compel Defendant Daniel Stein's Further Responses to Form and Special Interrogatories and Request for Sanctions is granted

Ira

Joe Cauthen's Motion to Compel Defendant Daniel Stein's Request for Production of Documents and Requests for Sanctions is granted, in part, and is moot, in part.

Background

Plaintiff

filed the Complaint on April 29, 2024. Plaintiff was riding his bicycle when he was struck by a motor vehicle driven by William Yang Stein ("driver").

Plaintiff alleges the following causes of action: 1. Motor Vehicle; 2. General Negligence. Moving Defendants Michelle Stein and Daniel Stein, the parents of William Yang Stein, are named in both causes of action.

Objections

Plaintiff's

objections:

Plaintiff's

objections 1 to 11 to the selected portions of the declarations of Michelle Stein, Daniel Stein, and William Yang Stein are overruled. The declarants have adequately set forth foundation for their testimony. Plaintiff's disputes as to the accuracy of the testimony do not constitute grounds to make the testimony inadmissible.

Motion for Summary Adjudication

The

purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to

resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary

judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendants

move for summary adjudication of the “Complaint of Plaintiff for Negligent Entrustment, Respondeat Superior and Negligent Hiring, Retaining, Training and Supervising. This motion [is] made on the ground that there is no triable issue of material fact as to Plaintiff’s Complaint as to Negligent Entrustment against Defendant MICHELLE STEIN and Defendant DANIEL STEIN since Defendant WILLIAM YANG STEIN was not an unfit driver. Also, since Defendant WILLIAM YANG STEIN was not in his course and scope of employment of Defendant DANIEL STEIN and Defendant MICHELLE STEIN, there is no liability regarding negligent entrustment, respondeat superior and Negligent Hiring, Retaining, Training and Supervising. In addition, since Defendant WILLIAM YANG STEIN was not an employee or agent of Defendant DANIEL STEIN and/or Defendant MICHELLE STEIN, there is no liability for resulting from any alleged screening, training or hiring Defendant WILLIAM YANG STEIN.” (Notice of Motion, p. 2, lines 3-11 (emphasis added)).

Code

Civ. Proc., § 437c(f)(1) states:

“A

party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Id. (emphasis added).

Cal.

Rules of Court, Rule 3.1350(b) states:

“If

made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment

motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” Id. (emphasis added).

Thus,

as noted by the authorities listed above, the notice of motion is uncertain as to what is actually sought to be adjudicated as the “Complaint” is not a matter that falls under the description of items that can be adjudicated in CCP § 437c(f)(1) and Cal. Rules of Court, Rule 3.1350(b). The items that can be adjudicated are causes of action, affirmative defenses, claims for damages (as specified in Civ. Code § 3294), or issues of duty. None of these are specifically described in the notice of motion. In addition, the separate statement provides no further guidance as it also fails to provide any statement as to what is sought to be adjudicated but, instead, just simply, listing the facts in the manner one would for a motion for summary judgment. Looking further into the memorandum of points and authorities, the Court notes that moving party makes repeated references to “causes of action,” and/or “claims.” Again, however, this was not set forth in the notice. However, Plaintiff asserted no objections to these procedural anomalies. Instead, both parties have set forth arguments only on the merits and appear to be operating under the presumption that this is a motion for summary adjudication of the “cause of action” for negligent entrustment. Unfortunately, here again, no specific “cause of action” for negligent entrustment was set forth, at least, as a title to the causes of action. Instead, they were titled “Motor Vehicle,” and “General Negligence.” Thus, the Court will analyze the motion as a motion for summary adjudication of these causes of action.

First Cause of Action for Motor
Vehicle

As

to the first cause of action, the elements of a cause of action for negligence are duty, breach, causation, and damages. Johnson v. Prasad (2014) 224 Cal.App.4th 74, 78. “The determination whether a duty exists is an issue of law.” Chee v. Amanda Goldt Property Management (2006) 143 Cal.App.4th 1360, 1369.

Defendants

fail to meet their initial burden to show that one or more elements of the causes of action cannot be established or that there is a complete defense to the causes of action. Thus, the burden does not shift to Plaintiff to show the existence of a triable issue of material fact as to the elements of the causes of action. CCP § 437c(p)(2).

The

following statutory authority applies to these causes of action: "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner." Veh. Code, § 17150.

Veh.

Code, § 17151 states:

"(a)

The liability of an owner, bailee of an owner, or personal representative of a decedent imposed by this chapter and not arising through the relationship of principal and agent or master and servant is limited to the amount of fifteen thousand dollars (\$15,000) for the death of or injury to one person in any one accident and, subject to the limit as to one person, is limited to the amount of thirty thousand dollars (\$30,000) for the death of or injury to more than one person in any one accident and is limited to the amount of five thousand dollars (\$5,000) for damage to property of others in any one accident.

(b)

An owner, bailee of an owner, or personal representative of a decedent is not liable under this chapter for damages imposed for the sake of example and by way of punishing the operator of the vehicle. Nothing in this subdivision makes an owner, bailee, or personal representative immune from liability for damages imposed for the sake of example and by way of punishing him for his own wrongful conduct."

In

the motion, Defendants essentially assert and concede that they have a duty under the above mentioned Vehicle Code sections negating any chance to summarily adjudicate the first cause of action. While the first cause of action also mentions a theory of negligent entrustment under Section MV-2d, negating

this theory would not completely dispose of the cause of action and therefore summary adjudication of the first cause of action is not possible.

The
motion for summary adjudication of the first cause of action is denied.

Second
Cause of Action for General Negligence

The
Court notes that the second cause of action is titled "General Negligence." However, within the cause of action itself the only theory of liability mentioned against the moving Defendants is under the theory of negligent entrustment. Thus, the Court will treat this motion as a motion for summary adjudication of the second cause of action for general negligence (negligent entrustment) as against moving Defendants. Further, contrary to the arguments stated by the moving parties, Plaintiff did not allege that moving Defendants were the employers or principals of the driver. Instead, those allegations were made against Does 1-50. Further, in any event, in the opposition, Plaintiff conceded that the only theory of liability against the moving Defendants was under the theory of negligent entrustment and not under a theory of negligent supervision or under any vicarious liability theory. (Opposition, fn. 1). Again, as noted above, no specific objections were made by Plaintiff to any of the procedural anomalies set forth in the motion identified above.

"Negligent
entrustment is a common law liability doctrine, which arises in numerous factual contexts. [Citation.] In cases involving negligent entrustment of a vehicle, liability "is imposed on [a] vehicle owner or permitter because of his own independent negligence and not the negligence of the driver." [Citations.] "Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner." [Citation]; accord, Rest.2nd Torts, § 308 ["It is negligence to permit a third person to use a thing or to engage in an activity which is under the control of the actor, if the actor knows or should know that such person intends or is likely to use the thing or to conduct himself in the activity in such a manner as to create an unreasonable risk of harm to others'].") [¶] California case law recognizes the

theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” [¶] A claim that an employer was negligent in hiring or retaining an employee-driver rarely differs in substance from a claim that an employer was negligent in entrusting a vehicle to the employee. Awareness, constructive or actual, that a person is unfit or incompetent to drive underlies a claim that an employer was negligent in hiring or retaining that person as a driver. (See Judicial Council of Cal., Civ. Jury Instns. (2010) CACI No. 426.) That same awareness underlies a claim for negligent entrustment. (See CACI No. 724.) In a typical case ... the two claims are functionally identical.” McKenna v. Beesley (2021) 67 Cal.App.5th 552, 565–567 (internal citations and quotations omitted).

Defendants

have met their initial burden to show that one or more elements of the second cause of action cannot be established or that there is a complete defense to the cause of action. (Defendants’ Separate Statement of Facts and Supporting Evidence, 12-19). Thus, the burden shifts to Plaintiff to show the existence of a triable issue of material fact as to the elements of the cause of action. Plaintiff failed to submit competent evidence to show the existence of a triable issue of material fact as to the second cause of action as against moving Defendants. CCP § 437c(p)(2).

CACI

724 sets forth the elements that must be proven by Plaintiff to prevail on a cause of action for negligent entrustment.

“1.

That [name of driver] was negligent in operating the vehicle;

2.

That [name of defendant] [owned the vehicle operated by [name of driver]/had possession of the vehicle operated by [name of driver] with the owner’s permission];

3.

That [name of defendant] knew, or should have known, that [name of driver] was incompetent or unfit to drive the vehicle;

4.

That [name of defendant] permitted [name of driver] to drive the vehicle; and

5.

That [name of driver]'s incompetence or unfitness to drive was a substantial factor in causing harm to [name of plaintiff]."

Defendants

submitted competent evidence to negate element 3. Defendants provided evidence that they did not know or should have known that Defendant William Yang Stein was incompetent or unfit to drive. Specifically, they provided facts that they believed that the driver was a competent driver, and that moving Defendants were not aware that the driver had any traffic violations or accidents. (UMF 13-15). In addition, Defendants submitted evidence that the driver had a valid driver's license and was not involved in any prior accidents, nor did the driver receive any moving vehicle violations. (Id. at 16-19). These facts show that Defendants did not know or should have known of the alleged unfitness of the driver to whom the vehicle was entrusted and the particular risk manifesting.

Therefore,

the burden shifts to Plaintiff to provide evidence as to the essential elements of the causes of action. Plaintiff failed to meet his burden. Instead, Plaintiff simply argues that the fact that the driver was a minor, only 16 years old, with the type of provisional license only available to minors prior to reaching the age of 18. In addition, Plaintiff points to the fact that the accident occurred only four days after the driver received this license. Thus, Plaintiff argues that Defendants knew or should have known that the driver was incompetent or unfit to drive. These facts alone are not sufficient to meet Plaintiff's burden. If this is treated as the standard to show knowledge of unfitness, then, every driver between the ages of 16 to 18 would be considered "incompetent" or "unfit" to drive. However, the fact that the driver was licensed would belie this fact. In addition, simply because the accident occurred only four days after the driver received the license is not dispositive. Again, here, simply using an arbitrary time frame cannot be the standard. Instead, there must be facts provided by Plaintiff showing actual issues of incompetence that Defendants knew or should have known prior to the accident. Being a very young driver on a brand new license is insufficient. For

example, evidence that despite the driver passing his drivers' license examination, the moving Defendants knew that the driver unfit to drive from some personal experience being in the car with the driver may have been sufficient. Simply speculating that a young driver is unfit or incompetent is not sufficient. In addition, Plaintiff also mentions that the driver did not comply with one of the conditions of the provisional license – not to transport a minor – at the time of the accident. However, this was not the cause of the accident and is not a fact that would demonstrate that the Defendants knew that the driver was unfit and that the particular risk of being unfit materialized.

Plaintiff

also places great emphasis on this portion of the driver's deposition testimony: "Yeah. I wanted to just mention, when you usually see a biker on the street, you usually don't pay much attention to them. Like, me, I didn't really pay much attention to the biker until like a hundred meters away because then I realized that this biker was biking very erratically across the road, and I was really scared. And I was really scared that I was going to hit him." (Deposition, William Yang Stein, at 95:16-25). Of course, Plaintiff only selectively quoted the portion stating, "you usually don't pay much attention to him," omitting the later statement that he would pay attention to bikers when they are at least 100 meters away. This deposition testimony statement by the driver does not provide competent evidence to show that he was unfit or that the moving Defendants knew or should have known that he was unfit.

Finally,

Plaintiff argues the following: "California law recognizes that negligent entrustment liability exists where the driver's "inexperience" causes the injury. *Flores v. Enterprise Rent-A-Car Co.* (2010) 188 Cal.App.4th 1055, 1063. (Opp. P. 9, lines 11-13). However, *Flores* does not stand for this proposition at all. Instead, *Flores* held that a rental car agency is not liable when it rents a car to a driver who had a valid license who showed no signs of lacking fitness to drive. In addition, the rental car company has no duty to investigate the driver's driving record. *Id.* at 711-13. Similarly, in the instant action, there is no evidence that the moving Defendants knew that the driver, who had a valid driver's license, lacked fitness to drive. Simply, because the driver was young and only had a license for a few days does not provide the requisite facts of knowledge of unfitness.

The

motion for summary adjudication as to the second cause of action for General

Negligence as directed against Daniel Stein and Michelle Stein is granted.

Motions to Compel Further

Responses to Form and Special Interrogatories and Requests for Production of Documents

Where responses to

interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP §

2030.300(a). Notice of the motion must

be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP §

2030.300(c). The motion must be

accompanied by a meet and confer declaration in compliance with CCP §

2016.040. CCP § 2030.300(b).

A party responding to an inspection demand shall

respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code

Civ. Proc., § 2031.210, subd. (a).) A

response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand.

(Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party

responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc.,

§ 2031.310, subd. (a).) “Unless

notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Where responses to requests for admissions have been served but requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2033.290(a). The motion must be made within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2033.290(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2033.290(b).

Meet
and Confer

Plaintiff set forth meet and confer declarations in sufficient compliance with CCP §§ 2030.300, 2031.310, and 2016.040. (Declarations, Julie Lu).

The Court notes that the parties did not schedule an informal discovery conference prior to the hearing and ruling upon of these motions. The Court elects to rule on the motions without an IDC because of the imminent trial date. The Court admonishes both parties and informs the parties that any future motions to compel further responses to written discovery requests requires an IDC prior ruling on the motions.

Motions
to Compel

As
to Form Interrogatories 7.1 to 7.3, 9.1, 9.2, 15.1, 16.1 to 16.10, and 20.11, and Special Interrogatories 1 to 6, 8, 10, and 15 to 18, the motion is granted.

Defendant's
responses are non-responsive, inadequate, incomplete, and/or evasive. In addition, Defendant has failed to justify his objections. The Court notes that Defendant also failed to file any written opposition to the motion.

As
to Request for Production of Documents 9, 12, 16, 19, 25, and 29 to 32, the motion is granted. Defendant's responses are non-responsive, inadequate, incomplete, and/or evasive. In addition, Defendant's responses do not comply with the responses do not comply with CCP

§ 2031.230 which requires: "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." Finally, Defendant has failed to justify the objections that were asserted.

As to Request 18, the motion is moot as Defendant served a further response on June 21, 2026.

The Court notes that while Defendant failed to file a written opposition to this motion, Defendant did file a separate statement. However, the separate statement does not provide facts and authorities that would justify the responses and/or objections that were asserted by Defendant.

As to the discovery items to which the Court ordered a further response, Defendant is ordered to serve further responses within 10 days of this date.

Sanctions

Plaintiff's requests for monetary sanctions are granted. Defendant and Defendant's counsel are sanctioned the total amount of \$2,074.50 which was calculated at 3 hours at \$650 per hour, plus filing fees of \$124.50.

Sanctions are payable within 30 days of this date.

Plaintiff is ordered to give notice of this ruling.